

		declarations, including, for example, an attorney-client fee agreement, emails or other communications concerning their individual representation, receipts or cancelled checks showing payment to Miller, or any like evidence of an attorney-client relationship. Further, defendants were served individually with the summons and complaint and later, the statement of damages, and Miller was served with the request for entry of default of defendants. Miller did nothing on their behalves, which the court infers as evidence Miller did <i>not</i> represent the individual defendants. Defendants have not submitted Miller's declaration. Defendants have not established <i>extrinsic</i> fraud or mistake for the mistaken belief Miller represented them individually. Intrinsic fraud exists when parties have had the opportunity to present their case but unreasonably failed to protect themselves. (<i>In re Marriage of Jones</i> (1987) 195 Cal.App.3d 1097, 1102.) If anything, there was an intrinsic fraud or mistake, which does not support a ground for relief. Finally, relief will be denied if the complaining party's negligence permitted the fraud to be practiced or the mistake to occur. (<i>Kramer, supra</i>, 56 Cal.App.5th at p. 30.) Defendants' negligence led to the result they now face. There are no exceptional circumstances justifying relief. Clerk to give notice. Motion to Strike Defendant Alphamotive Motors, LLC's Answer and Enter Default Plaintiff's motion to strike defendant Alphamotive Motors, LLC's answer and for entry of default is DENIED. Plaintiff has not filed a proof of service of the motion. Clerk to give notice.
4	Clancy vs. General Motors, LLC 30-2023-01350071-CU-BC-CJC	Motion for Attorney Fees, Costs, and Expenses Plaintiff Timothy E. Clancy's motion for attorney fees is DENIED.

		The court has observed a trend in lemon law cases, nearly all of which settle prior to trial, which is wholly absent from all other civil litigation the court oversees. The lemon law parties wait until the eve of trial, plaintiff files a notice of settlement of entire case without disclosing to the court any terms other than whether the settlement is unconditional or conditional, and then fails to follow through with dismissal, later filing a motion for attorney fees on grounds the parties agreed the court would decide the issue of attorney fees and costs as part of their purported settlement. Under the facts of this case, the chosen course of litigation conduct has no basis in law "If an entire case is settled or otherwise disposed of, each plaintiff or other party seeking affirmative relief must immediately file written notice of the settlement or other disposition with the court" (Cal. Rules of Court, rule 3.1385, subd. (a)(1).) "If the settlement agreement conditions dismissal of the entire case on the satisfactory completion of specified terms that are not to be performed within 45 days of the settlement, including payment in installment payments, the notice of conditional settlement served and filed by each plaintiff or other party seeking affirmative relief must specify the date by which the dismissal is to be filed." (<i>Id.</i>, rule 3.1385, subd. (c)(1).) The Judicial Council has adopted for mandatory use Form CM-200, Notice of Settlement of Entire Case (Notice), a form designed to inform the court and parties a settlement has been reached. The Notice states "the entire case has been settled" and requires the signer to state in paragraph 1 whether the settlement is unconditional or conditional. The Notice requires a signature under penalty of perjury from the filer. The court's jurisdiction to enforce a settlement agreement post-dismissal depends on a clear written or oral stipulation of the parties requesting retention of jurisdiction under Code of Civil Procedure section 664.6. Otherwise, the court loses jurisdiction upon dismissal. (See <i>DeSaulles v. Community Hospital of Monterey Peninsula</i> (2016) 62 Cal.4th 1140, 1156 [parties must ask court to retain jurisdiction before dismissal deprives court of jurisdiction].) On 10/22/2025, Plaintiff's counsel, Jordan G. Cohen of Consumer Law Experts, PC, filed a Notice stating the
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	parties had reached a conditional settlement of the entire case and representing under penalty of perjury the entire case had been settled and a request for dismissal would be filed no later than 2/19/2026. Other than the Notice, no party provided the court with any details of the settlement, including, e.g., whether it was entered into following acceptance of a Code of Civil Procedure section 998 offer to compromise or whether the parties had agreed to request the court to retain jurisdiction to enforce settlement terms under Code of Civil Procedure section 664.6. In reliance on Plaintiff's representation, on 10/22/2025, the court vacated all reporting requirements and ordered the parties to comply with California Rules of Court, rule 3.1385 by filing a dismissal upon completion of settlement terms on or before 2/19/2026. The court also vacated the pending trial date of 10/31/2025. On 4/9/2026, Plaintiff filed a request for dismissal without prejudice approximately two months after the 2/19/2026 deadline. The same day, Plaintiff filed a memorandum of costs, and on 5/27/2026, Plaintiff filed a motion for attorney fees. In the motion, the court was informed Plaintiff had accepted Defendant's 998 offer of compromise on 12/16/2025, which is curious, because the Notice was filed approximately two months earlier. In any case, the 998 offer provided, inter alia, (1) Plaintiff's attorney fees, expenses, and costs "may be determined by the Court via noticed motion"; (2) the Court would retain jurisdiction to enforce the offer of compromise under Code of Civil Procedure section 664.6; and (3) Plaintiff would file a request for dismissal of the entire action with prejudice, within 5 business days of receiving all payments from defendant. As the parties never requested the court retain jurisdiction under section 664.6 when dismissal was requested and entered on 4/9/2026, the court lost jurisdiction to hear any motion for attorney fees. The court considers the filing of the Notice under penalty of perjury representing the entire case has been settled a misrepresentation to the court if, indeed, additional law and motion over settlement terms is contemplated, as it was here. Settlement of the "entire case" means just
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		that. Even if the parties had requested the court to reserve jurisdiction under section 664.6, there would be no settlement of attorney fees to enforce, because terms were not originally agreed upon by the parties. (See <i>Levitz v. The Warlocks</i> (2007) 148 Cal.App.4th 531, 535 [“A settlement with open material terms is not a ‘conditional settlement.’ To the contrary, it is not a settlement at all because, like all contracts, it is not binding until the settling parties agree on all its material terms.”].) Further, plaintiff “must follow the procedures outlined in [California Rules of Court, rule 3.1385] subdivisions (a) and (b) even if the parties settle the case and agree to dismiss under the provisions of Code of Civil Procedure section 664.6.” (Advisory Com. com., Cal. Rules of Court, rule 3.1385.) And, “Code of Civil Procedure section 664.6 allows for but does not mandate the dismissal of cases with conditional settlements either upon stipulation of the parties or on the court’s own motion. Subdivision (c) provides an alternative process for cases with a conditional settlement in which dismissal is not sought under Code of Civil Procedure section 664.6” (<i>Id.</i>) Because the court has lost jurisdiction and the issues are not material to the motion, the court will not decide whether the misrepresentation is material or potentially subject to sanctions, whether a true settlement or only an agreement to agree was reached, arguments concerning enforceability of the 998 offer, and/or whether some other procedure was viable. The court rules only that the chosen course of action was not. Clerk to give notice.
5	Holcomb vs. General Motors, LLC 30-2026-01559179-CU-NP-CJC	Motion to Deem Vexatious Litigant Continued to 10/2/2025 for parties to comply with California Rules of Court.
6	Boyd vs. Fernandez 30-2025-01523882-CU-PA-CJC	Motion to Strike Portions of First Amended Complaint Defendant/cross-complainant Alejandro Fernandez’s Motion to Strike Portions of Plaintiff’s First Amended Complaint is DENIED in part and GRANTED in part with 10 days leave to amend.